

25STCV29227 25STCV29227

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Case Number: 25STCV29227 Hearing Date: September 18, 2026 Dept: 406

MELISSA PENUELA,

Plaintiff,

v.

FARHAD ARDESHIRPOUR,

M.D.,

Defendants.

Case No.: 25STCV29227

Hearing Date: September 18, 2026

[TENTATIVE]

order RE:

Defendants' motion to compel further
responses (CRS# 6696)

BACKGROUND

On October 6, 2025, Plaintiff

Melissa Penuela filed this action against Defendants Farhad Ardeshipour, M.D.

(Ardesht); Farhad Ardesht, M.D., Inc.; and Rodeo Wilshire Surgery Center LLC.

Plaintiff filed the operative Second Amended Complaint (SAC) on July 28, 2026,

asserting causes of action for (1) breach of written contract, (2) breach of

express warranty, (3) constructive fraud, (4) fraudulent inducement, (5) fraudulent deceit, (6) false advertising, (7) unfair business practices, and (8) violation of the Consumer Legal Remedies Act.

Plaintiff alleges that Defendant Ardesch falsely promised her he could perform cosmetic surgery without visible scars. After the surgery, Plaintiff allegedly suffered from permanent, visible disfigurement.

On August 12, 2026, Defendants filed the instant motion to compel Plaintiff's further responses to interrogatories. Plaintiff filed an opposition on September 1, 2026. On September 4, 2026, Defendants filed an "Amended Motion" narrowing the discovery requests at issue.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

A party "is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.) By contrast, the party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) Here, Defendants' meet and confer letter only addressed six interrogatories. Defendants concede this and have withdrawn the remaining interrogatories from their motion. Therefore, the Court only addresses the six interrogatories.

DISCUSSION

I.

SROG E-1

SROG E-1 asks Plaintiff to identify

any collateral source that has reimbursed or is obligated to reimburse her for the damages claimed in the case. Plaintiff responded: “No COLLATERAL SOURCE or obligor has reimbursed, paid, or is obligated to pay or reimburse Responding Party, or anyone acting on her behalf, for any of the damages and losses claimed in this case.” This is a complete response. Defendants’ skepticism as to the truth of the response is not a reason to compel a different response.

II.

SROG F-1 through F-3

SROG F-1 through F-3 ask Plaintiff

to identify every health care provider, and the reason for each visit, for the past 15 years. Plaintiff’s first supplemental response identified doctors who performed services related to Plaintiff’s face. Plaintiff’s second supplemental response added: “two physicians in France rendered elective cosmetic care to Plaintiff in France — one performed the two dissolvable cosmetic thread procedures, on two occasions approximately six months apart, in approximately 2015; the other administered facial dermal filler through approximately 2018, and Botox and lip filler through approximately 2020.” Plaintiff declined to provide information on health care providers for conditions unrelated to those at issue in this action.

Plaintiff’s privacy objection is

well-taken. The SROGs broadly seek every health care provider for the past 15 years, with no demonstrated relevance to the issues in litigation. Plaintiff did not open up her entire medical history by filing this lawsuit. Plaintiff otherwise provided a responsive, complete answer to the SROGs.

III.

SROG F-4

SROG F-4 seeks a description of all

scars Plaintiff has on her body, regardless of origin or etiology. Plaintiff

objected and then provided a description of the scars resulting from the surgery at issue in this lawsuit. However, information on other scars is relevant because Plaintiff alleges emotional distress from scarring caused by Defendants. Defendants are entitled to discover potential alternative causes of the scarring and of the alleged distress.

IV.

SROG G-1

SROG G-1 asks Plaintiff to list every social security number she has ever used. Plaintiff's privacy objection is well-taken. Defendants have not demonstrated that the information is relevant or reasonably calculated to lead to admissible evidence.

CONCLUSION

Defendants' motion to compel further responses is GRANTED as to SROG F-4 and DENIED in all other respects. Sanctions are denied as the parties acted with substantial justification.